This opinion is based on the following application documents

Description, Pages

1-4	as originally filed

Claims, Numbers

1-13	as originally filed

Drawings, Sheets

1/6-6/6	as originally filed

1. Reference is made to the following documents *D1* - *D3* cited in the European Search Report:

D1: EP 3 567 161 B1 (VOESTALPINE SIGNALING POLAND SP Z O O [PL]) 7 April 2021 (2021-04-07)

D2: EP 1 808 531 A1 (FRAUSCHER HOLDING GMBH [AT]) 18 July 2007 (2007-07-18)

D3: US 5 462 244 A (VAN DER HOEK MARINUS J [NL] ET AL) 31 October 1995 (1995-10-31)

2. The present application does not meet the requirements of Article 52 (1) EPC since independent product claim 1 is *not inventive* in the sense of Article 56 EPC for the following reasons:

2.1 Document *D1* is regarded as the closest prior art to the subject-matter of present claim 1. This document discloses, in particular in figure 10 and the corresponding parts of the description, a

track sensor arrangement consisting of

a wheel sensor (the skilled person will assume, that the track sensor in figure 10 is a wheel sensor),

a detachable connection assembly and

a track clamp (M,4),

wherein

the detachable connection assembly consists of

a supply cable (K) and

a plug (W)

provided with an electric plug connection (complement to the plug socket 2),

the track clamp (M,4) consists of

a support (4) and

connection elements (M),

wherein

inside the body of the plug (W) an assembly compartment is formed, and

the body of the plug (W) is slidingly fitted on the support (4) (figures 1 - 4).

2.2 The subject-matter of present claim 1 differs from the assembly known from document *D1* in that the assembly further comprises

a mounting holder which is slidingly fitted on the body of the plug,

wherein

the mounting holder is fastened to the support by means of a screw connection.

2.3 Hence, present claim 1 is new in the sense of Article 54 EPC.

2.4 The technical effect of the differing features is

that the plug is mechanically fixed in its position, when plugged in the socket.

2.5 The problem to be solved is

to improve the reliability of the plug connection.

2.6 The solution proposed by present claim 1 is *not inventive* in the sense of Article 56 EPC for the following reasons:

The skilled person faced with the problem would take into account the teaching of Document *D2,* since said document explicitly addresses the problem in paragraph [0006].

Document *D2* teaches, in figure 3 and the corresponding parts of the description, to introduce a mounting holder (17) in order to solve the problem problem posed. Said mounting holder (17) is is fastened to the support (3) by means of a screw (19) connection, whereby the mounting holder (17) is slidingly fitted on the body (15) of the plug (16) (paragraph [0014]): "Die Abdeckung 17 besitzt einen an die Vorderränder des Adapters 15 angepasste nach unten offene Aufstecköffnung 18"; i.e. the cover 17, which is a mounting holder in the sense of present claim 1 *slidingly fits* to the adaptor 15, which is a body of a plug in the sense of present claim 1, *since* the opening 18 of the adaptor is aligned with the shape of the adaptor).

Consequently, the skilled person would arrive at the subject-matter of present claim 1 without exercise of inventive abilities.

3. Dependent claims 2 - 13, which are referred back to independent claim 1, do not contain any additional features which, in combination with the features of any claim to which they refer, meet the requirements of the EPC with respect to novelty in the sense of Article 54 EPC or inventive step in the sense of Article 56 EPC. The reasons are the following:

Claim 2:

The sensor arrangement according to claim 1 characterized in that the mounting holder (11) is seated on the body (9) above first guides (13B) which are formed on the body (9) of the plug (5), wherein the first guides (13B) are seated in second guides (13A) which are formed on the support (7).

The mounting holder (17) in document *D2* is seated on the body (15) (paragraph [0014]). The skilled person which seeks to improve the mechanical properties of the contact between mounting holder and body would follow the teaching of document *D1,* which shows a connection of body and support based on guides (8,9), seated in one another. It is obvious that such a mechanical connection can be introduced to the mounting holder and the body with the same advantage.

Claim 3:

In document *D1* the support (4) is used as a one of the connection elements (M) in the track clamp (M4) (figure 10).

Claim 4:

Figure 1 of document *D1* shows that the body (1) of the plug (W) is fitted on pin guides which are fixed on the support (4), and in through guides which are formed in the body (1) of the plug (W).

Claims 5 and 6:

Snap-fit connections or elastic elements between the parts of a plug assembly are well-known to the skilled person in the field of plug connections.

Claims 7 - 11

are directed to further constructional details which come within the scope of the customary practice followed by a person skilled in the art.

Claim 12:

In the sensor arrangement of document *D1* the track clamp (M,4) is intended for attaching the sensor arrangement to a rail (S) (figure 10).

Claim 13:

Track clamps, intended for attaching a sensor arrangement to a railway sleeper are known from the prior art (for example document *D3,* figure 1 and corresponding parts of the description).

4. It is at present not apparent on which part of the application an allowable independent claim could be based.

Should the applicant nevertheless regard some particular matter as patentable, an independent claim should be filed, taking account of Rule 43 (1) EPC and Article 123 (2) EPC. When filing a new independent claim, the applicant should also indicate how the subject-matter of the new claim differs from the state of the art and the significance thereof with regard to an inventive step, and clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (Rule 137 (4) EPC and the Guidelines H - III. 2.1).

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